



GOVERNANCE DOCUMENT

Disciplinary Policy

International Society of Equity Analysts

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This document forms part of the official governance framework of the International Society of Equity Analysts (ISEA) and should be read together with the related documents listed above.

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1. Purpose

The International Society of Equity Analysts (ISEA) is committed to maintaining the highest standards of professional integrity, ethical conduct, competence, and accountability among its members, certificants, directors, officers, committee members, volunteers, and representatives.

This Disciplinary Policy establishes the framework through which ISEA identifies, investigates, assesses, and responds to alleged breaches of ISEA's ethical requirements, professional standards, policies, procedures, certification requirements, and obligations.

The purpose of this Policy is to:

- Protect the integrity and reputation of ISEA;
- Maintain confidence in the equity analysis profession;
- Ensure consistent and fair treatment of individuals subject to disciplinary proceedings;
- Promote professional accountability and remediation;
- Provide transparent processes for addressing misconduct.

This Policy operates consistently with the **Ethics Policy, Complaints Policy, Conflict of Interest Policy, Certification Policies**, and the **Code of Ethics and Standards of Professional Conduct** ("Code").

2. Scope and Application

This Policy applies to:

- Governing Council members;
- Officers;
- Committee members;
- Members (Student Members, Associate Members, Members and Fellows);
- Professional designation holders;
- Certification candidates and certificants;
- Volunteers;
- Representatives acting on behalf of ISEA;
- Individuals participating in ISEA-recognised professional activities.

This Policy applies to conduct occurring:

- in connection with ISEA activities, programs, events, services or operations;
- in the course of professional practice where the conduct constitutes a breach of the Code or other applicable ISEA requirements;
- in connection with ISEA membership, professional certifications, designations or other professional status;
- during certification, assessment, examination, education, training or continuing professional development activities;
- in connection with ISEA governance, committees, volunteering or other activities undertaken on behalf of ISEA;
- through public or private communications, publications or representations made in a professional capacity or in connection with ISEA;
- in connection with complaints, investigations, disciplinary proceedings or other ISEA processes; or
- outside the circumstances described above where the conduct is sufficiently connected to the individual's professional integrity, ISEA membership, certification, designation or standing within the profession.

3. Guiding Principles

ISEA disciplinary proceedings shall be conducted in accordance with the following principles:

3.1 Procedural Fairness

Individuals subject to disciplinary action shall:

- Receive notice of allegations;
- Have a reasonable opportunity to respond;
- Be provided with a fair assessment process;
- Have decisions based on relevant evidence.

3.2 Independence and Objectivity

Disciplinary matters shall be reviewed by individuals who are independent of the matter and free from conflicts of interest.

3.3 Confidentiality

Disciplinary information shall be treated confidentially and disclosed only where necessary for:

- Investigation;
- Decision-making;
- Legal obligations;
- Protection of ISEA's integrity.

3.4 Proportionality

Disciplinary outcomes shall be proportionate to:

- The seriousness of the conduct;
- The level of harm or potential harm;
- The individual's intent;
- Previous conduct history;
- Cooperation with the process.

3.5 Consistency

ISEA shall seek to apply disciplinary principles consistently while recognising that each matter must be assessed on its individual circumstances.

4. Grounds for Disciplinary Action

Disciplinary action may arise from conduct including, but not limited to:

4.1 Ethical Breaches

Including:

- Breaches of the Code;
- Breaches of the ISEA Ethics Policy;
- Failure to act with integrity or professionalism;
- Conduct inconsistent with the values of ISEA.

4.2 Professional Misconduct

Including:

- Misrepresentation of qualifications, certifications, or membership status;
- Providing false or misleading information;
- Fabricating research, analysis, credentials, or professional experience;
- Plagiarism or intellectual dishonesty;

- Failure to maintain professional competence.

4.3 Research and Analytical Misconduct

Including:

- Manipulation or fabrication of research;
- Failure to disclose material conflicts;
- Use of confidential or non-public information;
- Lack of independence or objectivity;
- Misleading investment analysis or reporting.

4.4 Certification and Examination Misconduct

Including:

- Cheating or attempted cheating;
- Misconduct during examinations;
- Submission of fraudulent information;
- Misuse of ISEA certification credentials;
- Improper representation of certification status.

4.5 Governance and Fiduciary Misconduct

Including:

- Breaches of director or committee responsibilities;
- Undisclosed conflicts of interest;
- Misuse of ISEA resources;
- Breaches of confidentiality;
- Abuse of authority.

4.6 Conduct Damaging to ISEA's Reputation

Including:

- Fraudulent or dishonest conduct;
- Serious professional misconduct;
- Public conduct reasonably likely to undermine confidence in ISEA.

5. Sources of Disciplinary Matters

Disciplinary proceedings may arise from:

- Complaints received under the ISEA Complaints Policy;
- Internal reviews;
- Certification audits;
- CPD compliance reviews;
- Governing Council or committee referrals;
- Regulatory notifications;
- Information received from credible external sources.

6. Preliminary Assessment

Upon receiving information suggesting possible misconduct, ISEA shall conduct a preliminary assessment to determine:

- Whether the matter falls within ISEA's jurisdiction;

- Whether further investigation is warranted;
- Whether urgent protective action is required;
- Whether referral to another authority is appropriate.

Possible outcomes include:

- No further action;
- Informal guidance;
- Referral for education or remediation;
- Formal disciplinary investigation.

7. Disciplinary Investigation Process

Where a formal investigation is initiated, ISEA may:

- Appoint an investigator or disciplinary panel;
- Review relevant documentation;
- Request information from relevant parties;
- Conduct interviews;
- Seek expert advice;
- Assess compliance with applicable standards.

The investigation shall be conducted objectively and confidentially.

8. Notice of Allegations

Before a disciplinary determination is made, the individual shall generally receive:

- Notice of the allegations;
- Relevant details regarding the alleged conduct;
- Applicable policies or standards;
- An opportunity to provide a response.

The individual shall be provided a reasonable timeframe to respond.

9. Disciplinary Panel

The Ethics and Professional Standards Committee may establish a Disciplinary Panel to consider serious matters.

A Disciplinary Panel may include:

- Members of the Ethics and Professional Standards Committee;
- Independent professionals;
- Legal or governance advisers;
- Subject matter experts.

Panel members must:

- Be independent;
- Disclose conflicts;
- Act objectively;
- Maintain confidentiality.

10. Standard of Decision-Making

ISEA shall determine disciplinary matters based on the balance of probabilities unless a higher standard is required by applicable law or specific circumstances.

The decision-maker shall consider:

- Evidence available;
- Reliability of information;
- Individual response;
- Relevant professional standards;
- Circumstances surrounding the conduct.

11. Disciplinary Outcomes

Where a breach is established, ISEA may impose one or more of the following outcomes:

11.1 Education or Remediation

Appropriate where the conduct can be corrected through:

- Additional training;
- Ethics education;
- Professional development;
- Corrective action.

11.2 Formal Warning

A formal warning may be issued where:

- A breach occurred;
- The conduct is not sufficiently serious to justify suspension or removal;
- Future compliance is required.

11.3 Conditions on Membership or Certification

ISEA may impose conditions including:

- Completion of specified education;
- Additional monitoring;
- Restrictions on participation;
- Enhanced reporting requirements.

11.4 Suspension

ISEA may suspend:

- Membership;
- Certification;
- Professional designation;
- Participation rights.

Suspension may be temporary or subject to conditions.

11.5 Withdrawal or Revocation

ISEA may withdraw or revoke:

- Membership;
- Certification;
- Professional designation;
- Recognition status.

Revocation may be appropriate for serious misconduct.

11.6 Removal from Leadership Positions

Individuals may be removed from:

- Governing Council positions;
- Committee appointments;
- Volunteer roles;
- Representative positions.

11.7 Referral to External Authorities

ISEA may refer matters to:

- Regulators;
- Professional bodies;
- Law enforcement authorities;
- Employers;
- Other appropriate organisations.

12. Aggravating and Mitigating Factors

In determining an appropriate outcome, ISEA may consider:

Aggravating Factors

Including:

- Deliberate misconduct;
- Dishonesty;
- Financial benefit obtained;
- Harm caused to others;
- Lack of cooperation;
- Previous disciplinary history.

Mitigating Factors

Including:

- Admission of wrongdoing;
- Cooperation with investigation;
- Genuine remediation;
- Lack of prior misconduct;
- Exceptional circumstances.

13. Appeals and Review

A person subject to disciplinary action may request an appeal or review where:

- Significant procedural error occurred;
- New material evidence becomes available;
- The decision was unreasonable based on available evidence.

Appeals shall be reviewed by an appropriately independent authority.

The appeal process shall not ordinarily reconsider matters merely because the individual disagrees with the outcome.

14. Public Disclosure of Disciplinary Actions

ISEA may publish disciplinary outcomes where necessary to:

- Protect public confidence;
- Maintain professional integrity;
- Provide transparency regarding serious misconduct.

ISEA shall consider:

- Privacy obligations;
- Fairness;
- Proportionality;
- Public interest.

15. Records Management

ISEA shall maintain appropriate records relating to:

- Complaints;
- Investigations;
- Findings;
- Disciplinary outcomes;
- Appeals.

Records shall be maintained securely and confidentially.

16. Responsibilities

16.1 Ethics and Professional Standards Committee

The Committee shall:

- Oversee disciplinary processes;
- Interpret professional standards;
- Review alleged misconduct;
- Recommend disciplinary outcomes;
- Monitor trends and improvements.

16.2 Governing Council

The Governing Council shall:

- Maintain ultimate governance responsibility;
- Approve significant disciplinary frameworks;
- Review matters involving directors or senior officers;
- Ensure organisational integrity.

17. Relationship with the Code

Where disciplinary matters involve professional conduct relating to equity analysis, investment research or related professional activities, ISEA shall assess the relevant conduct having regard to the Code and any other applicable ISEA requirements.

The Code establishes the substantive ethical and professional standards applicable to Members and other persons within its scope. ISEA retains independent responsibility for interpreting, administering and enforcing its Code and disciplinary framework.

18. Review and Continuous Improvement

The Ethics and Professional Standards Committee shall periodically review this Disciplinary Policy to ensure alignment with:

- International professional standards;
- Ethical expectations;
- Governance best practices;
- Regulatory developments;
- The evolving needs of the equity analysis profession.

Amendments shall be submitted to the Governing Council for approval.

19. Effective Date

This Disciplinary Policy takes effect on the date approved by the Governing Council.